

24AVCV01641 24AVCV01641

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-27

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ARMANDO ERNESTO VASQUEZ,

Plaintiff,

v.

LANCASTER SCHOOL DISTRICT, a public entity, ROBERT MOODY, an individual, and DOES 1 through 10, inclusive,

Defendants.

Case Number 24AVCV01641

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 27, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury and property damage case arising from a motor vehicle accident.

On December 13, 2024, Plaintiff Armando Ernesto Vasquez (Plaintiff) filed a complaint against Defendants Lancaster School District (LSD) and Robert Moody (Moody) (together Defendants), asserting causes of action for motor vehicle injury and general negligence. Plaintiff alleges that on July 10, 2024, Plaintiff was driving his truck when Moody, in the course and scope of his employment with LSD, drove at a speed in excess of the posted speed limit and struck Plaintiff's truck, causing physical injury and other damages, including a traumatic brain injury. (Compl., General Negligence Attachment.)

On January 16, 2025, Defendants jointly filed an answer.

On June 25, 2026, Plaintiff's counsel Dana Taschner and Anthony J. Crawford (together Counsel) filed a Motion to be Relieved as Counsel.

On July 30, 2026, the Court continued the motion to August 27, 2026 and ordered Counsel to remedy the procedural defects in the moving papers and utilize the appropriate forms.

On July 31, 2026, Counsel filed an amended Motion to Be Relieved.

This motion is unopposed.

II. Legal Standard

Standard for Motion to be Relieved as Counsel – The Court has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.)

California Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil"); (2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order."; (4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" either by personal service, electronic service, or by mail.

(Cal. Rules of Court, rule 3.1362(a) – (e).)

"If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) the service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (Cal. Rules of Court, rule 3.1362(d)(1).) "[C]urrent" means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address

and was not returned...is not, by itself, sufficient to demonstrate that the address is current.” (Id at rule 3.1362(d).)

III. Discussion

Application – Counsel moves to be relieved as Plaintiff’s counsel.

Counsel has remedied many of the defects previously noted by the Court and substantially complied with Rule 3.1362. Counsel has filed an MC-051 including all required information and a proof of service establishing service on Defense counsel via electronic mail and the Plaintiff via mail. Counsel also filed two MC-052 forms declaring that Counsel has confirmed within the past 30 days that Plaintiff’s address is current based on numerous communications and records searches which was also served on Defense counsel and Plaintiff. Counsel asserts a conflict of interest has arisen along with other issues preventing further engagement and requiring withdrawal as counsel of record. Finally, Counsel has filed an MC-053 form with the required information, served on Plaintiff and Defense counsel.

The Court also finds no prejudice to Plaintiff. The only hearings on calendar are (1) an OSC re completion of mediation, (2) an OSC, and (3) a jury trial set for May 28, 2027. The Court also notes that while the parties are to engage in mediation, the mediation has been moved to October 21, 2026, leaving Plaintiff ample time to retain separate counsel or proceed as a self-represented party.

While Counsel failed to include the OSC date on the moving papers, the Court does not find this defect fatal, and in light of the purported conflict of interest mandating withdrawal, the Court will grant the motion notwithstanding omission of the OSC date on the moving papers.

Accordingly, Counsel’s motion to be relieved is GRANTED.

IV. Conclusion

Plaintiff’s counsel Dana Taschner and Anthony J. Crawford’s Motion to Be Relieved as Counsel is GRANTED.